

Title Report - Buyer - commitment should work - 1

Title Insurance Report - Plain Language Overview for Buyer

Executive Summary

Closing Status: NOT READY - Critical Issues Must Be Resolved

Your purchase of the property at 675 Bunker Hill Road, Columbia, MS cannot close until a serious problem with the deed is fixed. The deed that was recorded names the wrong buyers--it says the property is going to Christopher Lane Thornhill and Sara E. Jackson, but you (Kyla B. Fortenberry) are the actual buyer. This must be corrected immediately by recording a new deed in your name.

Additionally, there are some questions about who actually owns the property right now and some overlapping language about mineral rights that need to be clarified. Once these issues are resolved, closing should proceed smoothly.

Overall Readiness Score: 67/100 (Below closing threshold)

Property Information

Detail Information
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Address 675 Bunker Hill Road, Columbia, MS 39429-7832
County Marion County, Mississippi
Parcel Number 074-04-000-04-005
Size 88 acres
Property Type Land with improvements
Assessed Value \$9,030
Total Value \$60,190

The Parties Involved

Role Name
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You (Buyer) Kyla B. Fortenberry
Current Owner Garner Tree Farm, LLC (a Mississippi company)
Seller Listed Terri G. Crawley
Your Lender Society Mortgage

Critical Issues That Must Be Fixed Before Closing

? ISSUE #1: Wrong Buyer Named in the Deed (BLOCKING PROBLEM)

What happened:

A deed was recorded on January 13, 2026, but it names Christopher Lane Thornhill and Sara E. Jackson as the buyers--not you. This is completely wrong.

Why this matters:

- You cannot receive title insurance as the owner if the deed doesn't name you as the buyer
- The property legally belongs to the wrong people right now
- Your lender cannot give you a loan without proper title in your name

What needs to happen:

A corrected deed must be recorded immediately that properly conveys the property from Garner Tree Farm, LLC directly to you (Kyla B. Fortenberry). This is the #1 priority and must be done before anything else can proceed.

?? ISSUE #2: Confusion About Who Actually Owns the Property

What happened:

The records show that Garner Tree Farm, LLC (a company) currently owns the property, but Terri G. Crawley is listed as the seller. These don't match up.

Why this matters:

- We need to understand the relationship between the LLC and Terri G. Crawley
- The LLC may need to authorize the sale through official company documents
- We need proof that the person selling the property has the legal right to do so

What needs to happen:

The seller must provide:

- A copy of the LLC's operating agreement (the company's rulebook)
- Proof that the LLC is in good standing with the state
- A signed resolution from all LLC members approving this sale
- Any other documents the title company requests after reviewing the LLC's records

Note: Terri G. Crawley appears to be a member (owner) of the LLC, which may explain why she's listed as the seller, but this must be formally documented.

? **ISSUE #3: Mineral Rights Are Separated from Your Property**

What happened:

The deed states that all oil, gas, and other minerals in the ground are not included in what you're buying. Someone else owns the mineral rights.

Why this matters:

- You will own the land and surface, but not the minerals underneath
- Someone else has the right to drill for oil and gas if they want to
- This is noted in your title insurance policy as an exception (something not covered)

What you should know:

- This is common in rural Mississippi properties
- The title company is aware of this and will note it in your policy
- You should understand that mineral rights are severed before closing

Other Property Matters (Standard Issues)

Easements (Rights for Others to Use Your Land)

The property has easements for:

Easement	Purpose	Holder
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VYVX, Inc. Easement	Right of way	VYVX, Inc. (recorded 1997)
Water Line Easement (2009)	Water line access	Bunker Hill Water Association
Water Line Easement (2023)	Water line access	Bunker Hill Water Association

What this means: These organizations have the legal right to access your property for their utilities. This is normal and won't affect your use of the land.

Taxes

Good news: Your property taxes are current and paid. There are no delinquencies.

- 2025 first installment: \$1,132.52 (PAID)
- Amount owed: \$0.00

What Still Needs to Happen

Before Closing (In Order of Priority)

1. ? STOP - Record corrected deed naming you as buyer (CRITICAL)
2. ? Provide LLC documentation (operating agreement, good standing certificate, member resolution)
3. ? Verify no open loans against the property (appears clear)
4. ? Verify no bankruptcy issues (appears clear)
5. Record your deed of trust with your lender
6. Final title verification and policy issuance

What You're Getting (Insurance Coverage)

| Coverage | Amount |

|-----|-----|

| Owner's Title Insurance | \$80,000.00 |

| Lender's Title Insurance | \$80,808.00 |

| Policy Type | 2021 ALTA Standard Policies |

| Coverage Type | Fee Simple (full ownership) |

What this means: Once the deed issue is fixed, you'll receive title insurance protecting you and your lender against future claims to the property.

Bottom Line Recommendations

? What Must Happen Immediately:

1. Record a corrected deed naming Kyla B. Fortenberry as the buyer within the next 2-3 business days
 - This is non-negotiable and blocks everything else
 - Contact the seller's attorney or title company immediately
2. Gather and submit LLC documents from Garner Tree Farm, LLC
 - Operating agreement
 - Good standing certificate from Mississippi Secretary of State
 - Signed resolution from all members authorizing the sale
3. Confirm the seller's authority to represent the LLC in this transaction

?? Timeline:

- Days 1-2: Record corrected deed and submit LLC documents
- Days 3-5: Title company reviews documents and clears requirements
- Days 6-7: Record deed of trust and finalize closing

? Next Steps:

Contact your title company or real estate attorney immediately to:

- Explain the deed error and get it corrected
- Obtain the LLC documents from the seller
- Confirm your closing date once the deed is recorded

Questions to Ask Your Real Estate Attorney or Title Company

1. "When will the corrected deed be recorded in my name?"
2. "What LLC documents do we need from the seller, and when will they be provided?"
3. "Once the deed is corrected, how long until we can close?"
4. "Are there any other issues I should know about?"
5. "What happens if the corrected deed isn't recorded in time?"

Report Prepared By: Old Republic National Title Insurance Company

Commitment Number: 01-26006219-01T

Commitment Date: January 16, 2026

Report Date: January 2026

This report is provided for informational purposes. Please consult with your real estate attorney regarding any legal questions or concerns.